ORDINANCE NO. 24-007Z
Town of North Providence
AN ORDINANCE AMENDING
CHAPTER 35 ZONING
The text below in underline is text to be added to the zoning code.
The text below in ~~strikethrough~~ is removed from the zoning code.

Article V - Variances and Special Use Permits

The following uses shall require a special use permit from the permitting authority. Special use permits must adhere to the specific and objective criteria specified herein as to each use:

a) Multi-family dwelling structures
b) Drive-in Restaurant and Drive Thru Window;
c) Gas Stations;
d) Lodging or Guest House
e) Hotel
f) Motel
g) Hospital or Clinic (not for mental or alcoholic treatment)
h) Hospital or Clinic (for mental or alcoholic treatment)
i) Mental Health Facility
j) Government Building (except garage or utility)
k) Garage or Utility Government
l) Public Recreation Hall
m) Clubs and Fraternal Organizations
n) Radio/TV/Phone Antenna Tower
o) Professional School Hair, Computers, etc.
p) Office for Wholesale or Manufacturing Use
q) Tavern or Night Club
r) Theater or Concert Hall
s) Indoor Commercial Recreation, ie Fitness Center, Tennis Club
t) Landscaping Business
u) Gasoline Station (Major Repairs)
v) Vehicle Rental Agency
w) Vehicle Washing Shop
x) Child Day Care Center (more than 6 unrelated children)
y) Wholesale Business and Storage of Non-Flammable and Non-Explosive material in a building
z) Open Lot storage of building materials
aa) Open storage of solid fuel, sand, and gravel storage use
bb) Storage of flammable and/or explosive materials
cc) Mini-storage facility
dd) Auto body or Paint Shop
ee) Furniture Refinishing
ff) Industrial Uses

(2) Criteria for Special Use Permits

d) Lodging or Guest House

i. The property must be registered with the City Clerk as a short-term rental unit, or guest house.

ii. Rental of two guest bedrooms or less to no more than a total of four persons in an owner-occupied dwelling unit; only one such use shall be permitted on a lot.
iii. The property may be inspected by the Minimum Housing inspector as part of the registration process.
iv. Properties must meet an off-street parking requirement of one space per bedroom, unless:
    1. The lodging or guest home is located within a quarter mile (1,320 feet) of a public transit stop, or;
    2. The property owner submits a Transportation Demand Management (TDM) Plan that is approved by the Zoning Officer and the Planning Director. This plan must detail strategies to reduce reliance on personal vehicles.
    3. The lodging or guest home provides secure bicycle parking at a ratio of one space per guest room, along with additional amenities such as bike repair stations or loaner bicycles for guests, or;
    4. The lodging has a formal agreement with a nearby facility (e.g. commercial properties with complementary parking demand patterns to use their parking spaces, effectively reducing the need for dedicated guest parking, or;
v. All short-term rentals must be owner-occupied for at least 6 months per calendar year.

(e) Hotel

i. Hotel developments require a minimum lot size of 5 acres to accommodate comprehensive facilities without overcrowding.
ii. Structures must maintain a minimum 100-foot setback from residential dwelling units to minimize noise and light intrusion.
iii. Maximum Front Yard Setback:
    1. Base Maximum Setback: The hotel shall have a maximum front yard setback of 30 feet from the property line to the nearest point of the hotel structure.
    2. Pedestrian Amenities: A minimum of 10 feet within the setback area must be dedicated to pedestrian pathways.
    3. Landscaping Requirement: At least 50% of the setback area must be landscaped.
    4. Proximity to Public Transit: If the hotel is located within 0.25 miles of a public transit stop, the maximum setback may be reduced to 20 feet to encourage the use of public transit and improve accessibility.
    5. Administrative adjustments to the maximum setback are permitted to ensure compatibility with the existing neighborhood character, based on the predominant setback pattern in the area.
iv. Parking Requirements:
    1. The hotel is required to provide 1.5 parking space per guest room.
    2. Parking shall be prohibited within ten feet of boundary lines or the required minimum front yard to preserve landscape buffers.
    3. All parking and driveways must be confined to the lot's boundaries, adhering to specific ordinance provisions for design and layout.
    4. All primary parking areas for guests and hotel employees must be located in the rear of the building.

5. Parking plans must provide safe pedestrian circulation with clearly marked crosswalks from each parking area to the building entrance(s), ensuring accessibility and safety for all visitors.

v. Landscaping Requirements: At least 20% of the site area must be dedicated to green space, using native plants, and providing ecological benefits. Refer to Standards for Parking Lots and Loading Facilities within this ordinance for Screening and/or Landscaping requirement guidelines.

f) Motel

i. The motel must be located on a lot or tract with a minimum area of 2 acres, owned by an individual, corporation, or group thereof, to ensure ample space for development and amenities.

ii. Permitted accessory uses include essential office space, parking, and maintenance areas, focusing on operational efficiency and guest services.

iii. Off-Street Parking:

1. 1.5 spaces will be required per unit or room.
2. Parking shall be prohibited within ten feet of boundary lines or the required minimum front yard to preserve landscape buffers.
3. All parking and driveways are confined to the lot's boundaries, adhering to specific ordinance provisions for design and layout.
4. All primary parking areas shall be located in the rear of the building.
5. There shall be no parking located within 50 feet of the front lot line other than handicap-accessible spaces which may be allowed in the front or side of the building and/or lot where access to main entryways would otherwise be prohibitive to the accessibility of those spaces.
6. Parking plans must provide safe pedestrian circulation with clearly marked crosswalks from each parking area to the building entrance(s), ensuring accessibility and safety for all visitors.

g) Hospital or Clinic (not for mental or alcoholic treatment)/4. Hospital or Clinic (for mental or alcoholic treatment)/5. Mental Health Facility

i. No front yard setback shall exceed 30 feet, unless the proposal includes a waiver to accommodate ambulance access, emergency drop-offs, and ADA-compliant pathways.

ii. A traffic impact study must be submitted, demonstrating that the proposed development will not adversely affect the surrounding road network and identifying necessary traffic mitigation measures.

iii. Designated ambulance and emergency vehicle access routes must be marked, maintained, and unobstructed at all times.

iv. Exterior Lighting shall adhere to Dark Sky principles, with all outdoor lighting being downward-facing and fully shielded to minimize light pollution.

h) Government Building "(except garage or utility)

i. Front yard setback shall be a maximum of 30 feet to provide space for landscaping and public access.

ii. A minimum of 20% of the site area should be dedicated to landscaping, using native plants to promote biodiversity and reduce water usage.

(i) Garage or Utility Government

i. A minimum of 20% of the site should be dedicated to landscaped areas using native or adaptive plant species to reduce water consumption and support local biodiversity.
ii. Establish landscaped buffer zones of at least 20 feet wide between the facility and adjacent properties along the side and rear yard(s), enhancing privacy and visual appeal.

j) Public Recreation Hall

i. A minimum of 20% of the site area is dedicated to green space, using native plants and trees to enhance biodiversity and provide recreational areas for visitors.

k) Clubs and Fraternal Organizations

i. Operational hours shall minimize disturbances to neighboring residential areas, with activities ending no later than 10 PM on weekdays and 11 PM on weekends.
ii. One parking space per each 3 persons (3) of total building occupancy is required.
iii. At least 20% of the site area is dedicated to landscaping and green space, incorporating native plants, trees, and sustainable landscaping practices.

(l) Radio/TV/Phone Antenna Tower

i. Co-location on existing structures or towers is encouraged to reduce the need for new tower constructions. Applications must demonstrate that co-location is not feasible before proposing a new tower.
ii. The height of the tower should be the minimum necessary to fulfill the operational requirements of the service provider while considering FAA regulations and local height restrictions.
iii. Design must incorporate stealth technology where feasible to minimize visual impact, including but not limited to disguising the structure as a tree, flagpole, or other structure harmonious with the local environment.
iv. A third-party certified structural engineer, to be selected by the Planning Director but paid for by the applicant, must review and approve the design to withstand the climatic conditions specific to the area.
v. Compliance with all relevant federal (FCC, FAA) and state regulations is required, including any necessary filings or notifications to be submitted to the Zoning Officer and Planning Director as needed or directed by town officials.

(m) Professional School Hair, Computers, etc.

Schools expecting high traffic volumes should develop a traffic management plan to minimize congestion during peak times, including staggered class schedules and carpooling incentives.

(n) Office for Wholesale or Manufacturing Use

(o) Tavern or Night Club

i. A traffic impact study may be required for taverns anticipating occupancy of over 100 persons. This study should evaluate the impact on local traffic patterns and propose mitigation measures if necessary.
ii. On-site Off-Street parking requirements may be reduced if the tavern has a formal agreement with a nearby facility (e.g. commercial properties with complementary parking demand patterns to use their parking spaces) by an equivalent amount of parking spaces which would be provided via the formal agreement. The formal agreement must be submitted as part of the Special Use Permit application and the owner of the nearby facility must be named as a co-applicant on all application documents.
iii. Soundproofing measures must be installed to ensure noise generated within does not exceed ambient noise levels by more than 5 decibels at the property boundary.
iv. Exterior lighting must be designed to minimize glare on adjacent properties and roadways, conforming to Dark Sky principles.
v. Signage and exterior design elements must be compatible with the character of the surrounding neighborhood and comply with local zoning ordinance specifications.

p) Theater or Concert Hall

i. Maximum front yard setback shall not exceed 30 feet.
ii. On-site Off-Street parking requirements may be reduced if the facility has a formal agreement with a nearby facility (e.g. commercial properties with complementary parking demand patterns to use their parking spaces) by an equivalent amount of parking spaces which would be provided via the formal agreement. The formal agreement must be submitted as part of the Special Use Permit application and the owner of the nearby facility must be named as a co-applicant on all application documents.
iii. Landscaping: A minimum of 20% of the site area dedicated to landscaping, focusing on native plantings and sustainable landscaping practices.
iv. Exterior Lighting: Design exterior lighting to minimize light pollution and glare, adhering to Dark Sky principles, while ensuring safety and security.

q) Indoor Commercial Recreation, ie "Fitness Center, Tennis Club

i. Facilities must comply with local zoning ordinance dimensional requirements.
ii. May be required to evaluate and mitigate potential impacts on local traffic flow and safety, especially for larger facilities or those located in traffic-congested areas.
iii. Landscaping Requirements: A minimum of 20% of the site area dedicated to landscaping, focusing on native plantings and sustainable landscaping practices to enhance the site's ecological value.
iv. Exterior lighting must be designed to minimize light pollution and glare, adhering to Dark Sky principles while ensuring safety and security for facility users.

r) Landscaping Business

i. Equipment and materials storage areas must be screened from public view with fencing or dense landscaping approved by the Zoning Officer.

ii. Fire Safety: Storage areas for flammable materials must comply with fire safety standards, including maintaining appropriate distances from buildings and securing materials against accidental ignition.

s) Gasoline Station (Major Repairs)

i. Minimum lot area shall be 25,000 square feet.
ii. Minimum lot depth shall be 150 feet.
iii. Minimum lot width shall be 100 feet to ensure separation between repair activities and fuel sales areas.
iv. All structures and repair bays must be set back a minimum of 30 feet from the front lot lines and 20 feet from the side and rear lot lines to mitigate noise and visual impacts.
v. A landscaped buffer of 20 feet wide along any lot line abutting residential zones, incorporating a mix of shrubs and trees to enhance aesthetic appeal and minimize noise pollution.
vi. All repair activities must occur within a fully enclosed building to contain noise and prevent pollution.
vii. Continuous operation noise levels must not exceed 60 decibels during daytime (7 AM to 7 PM) at the nearest residential property line.
viii. Use of pneumatic tools and other high-noise activities must be limited to inside the enclosed repair building.
ix. No storage of unlicensed, dismantled, or inoperative vehicles outside of the enclosed building for more than 72 hours.
x. A minimum of 20% of the site must be dedicated to landscaping, with emphasis on native plantings and stormwater management features such as bioswales or rain gardens.

t) Vehicle Rental Agency

i. Enclosed Operations: All vehicle maintenance, washing, and preparation activities must be conducted within an enclosed building to minimize noise and environmental impacts.
ii. A designated area for vehicle storage must be provided on-site, separate from customer and employee parking. This area must be adequately screened from public view and neighboring properties.
iii. Display Limitations: Vehicles displayed for rental must not encroach on public rights-of-way, sidewalks, or required landscaping areas.
iv. Exterior Lighting: Lighting fixtures should be designed and located to minimize glare on adjacent properties and roadways, with all lighting directed downward and inward.
v. Circulation Plan: A circulation plan must be submitted, showing efficient vehicular movement within the site, including entry, exit, and emergency vehicle access.

u) Vehicle Washing Shop

i. The minimum lot size shall be 10,000 square feet.
ii. Internal circulation plans shall demonstrate where vehicles waiting for or undergoing manual washing will be accommodated, with separate entry and exit points to prevent congestion and ensure smooth operations.

v) Child Day Care Center (More than 6 unrelated children)

i. The applicant must provide valid proof of state licensing for operating a child day care center, ensuring compliance with all state standards for childcare services.
ii. A dedicated drop-off area must be established near an entrance to the building. This area should include a queuing lane that accommodates a minimum of 10% of the facility's enrollment capacity, without obstructing vehicle parking spaces or traffic flow. The design must ensure the safety of children during drop-off and pick-up times.
iii. An outdoor play area must be provided, securely fenced and equipped with age-appropriate play equipment. The play area should be located away from vehicle traffic and parking areas to ensure child.

w) Wholesale Business and Storage of Non-Flammable and Non-Explosive Material in a Building

i. Where the use abuts a residential use or zoning district, there shall be a 75-foot setback from each such lot line abutting a residential use or zoning district.

x) Open lot storage of building materials and machinery

i. Where the use abuts a residential use or zoning district, there shall be a 75-foot setback from each such lot line abutting a residential use or zoning district.
ii. Equipment and materials storage areas must be screened from public view with fencing or dense landscaping approved by the Zoning Officer.

y) Open Storage of Solid Fuel, Sand, and Gravel

i. Where the use abuts a residential use or zoning district, there shall be a 75-foot setback from each such lot line abutting a residential use or zoning district.
ii. Equipment and materials storage areas must be screened from public view with fencing or dense landscaping approved by the Zoning Officer.

z) Storage of Flammable/Explosive Materials

i. Current approvals from RIDEM must be provided and kept on file with the Town.
ii. The storage area shall be completely enclosed along all lot lines by a solid fence or wall a minimum of six feet and a maximum of eight feet in height, including ingress and egress. Fences or walls along the front or corner side lot line shall be set back a minimum of three feet. Within that setback, one shrub(s) a minimum of three feet in height shall be planted linearly every three feet on-center along such fence or wall.
iii. Storage of any kind is prohibited outside the fence or wall. No items stored within 30 feet of the fence or wall may exceed the height of the fence or wall.
iv. The storage area should be located in the rear of the lot. Any structures shall be located in front of the storage area to obscure the view of the storage from street(s), in compliance with the front yard of the underlying zoning district.
v. There shall be a 75-foot landscaped buffer along any lot line abutting a street, excluding driveways, which shall include one shrub(s) per three linear feet along said lot line a minimum of three feet in height at the time of planting, as well as one street tree for every five of linear feet along said lot line.

aa) Mini Storage Facility

i. There shall be a 75-foot landscaped buffer along any lot line abutting a street, excluding driveways, which shall include one shrub(s) per three linear feet along said lot line a minimum of three feet in height at the time of planting, as well as one street tree for every five of linear feet along said lot line.

bb) Auto Body or Paint Shop

i. All repair, service, sales, and/or leasing operations shall be performed within a fully enclosed building. All equipment and parts shall be stored indoors.
ii. Vehicle services establishments shall be screened along the interior side and rear lot lines with a solid wall or fence, a minimum of six feet and a maximum of eight feet in height.
iii. No partially dismantled, wrecked, or unlicensed vehicles shall be stored outdoors on the premises. This standard does not apply to vehicles under repair and/or service.
iv. No motor vehicles shall be stored and no repair and/or service work shall be conducted in the public right-of-way.
v. The site shall otherwise comply with the landscaping requirements of this zoning ordinance.
vi. No access driveway may exceed 25 feet in width. For a corner lot, curb cuts are restricted to one curb cut per street frontage.

cc) Furniture Refinishing

i. All existing Rhode Island State air pollution control regulations shall be met.

dd) Industrial Uses- All Uses Permitted by Special Use Generally

i. All activities related to industrial use shall be confined to a structure that is entirely enclosed.
ii. On-site retail use is limited to 15 percent of the total floor area.
iii. Any gases or fumes emitted in such quantity or of such nature that they are or potentially may become odorous or toxic shall be collected and filtered, washed, absorbed, burned, or otherwise treated in a manner approved by the building inspection division before being discharged into the atmosphere.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: June 4, 2024

Approved: June 6, 2024

Council President

Mayor

Town Clerk